

HOUSE BILL 128

By Lamberth

AN ACT to amend Tennessee Code Annotated, Title 50,  
Chapter 6, Part 2, relative to workers'  
compensation.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 50-6-201, is amended by deleting the section and substituting:

(a) An injured employee or the injured employee's representative shall, immediately upon the occurrence of an injury, or as soon thereafter as is reasonable and practicable, give or cause to be given to the employer who has no actual notice, written notice of the injury, and the employee is not entitled to physician's fees or to any compensation that may have accrued under this chapter, from the date of the accident to the giving of notice, unless it can be shown that the employer had actual knowledge of the accident. Compensation is not payable under this chapter unless the written notice is given to the employer within fifteen (15) days after the occurrence of the accident, unless reasonable excuse for failure to give the notice is made to the satisfaction of the tribunal to which the claim for compensation may be presented.

(b) In those cases where the injuries occur as the result of gradual or cumulative events or trauma, the injured employee or the injured employee's representative shall provide notice of the injury to the employer within fifteen (15) days from the date the employee:

(1) Knows or reasonably should know that the employee has suffered a work-related injury that has resulted in permanent physical impairment; or

(2) Is rendered unable to continue to perform the employee's normal work activities as the result of the work-related injury, and the employee knows or reasonably should know that the injury was caused by work-related activities.

(c)

(1) The notice of the occurrence of an accident required to be given to the employer by the employee or the employee's representative must state in plain and simple language the name and address of the employee and the time, place, nature, and cause of the accident resulting in injury or death. The notice must be signed by the claimant or by a person authorized to sign on the claimant's behalf, or by one (1) or more of the claimant's dependents if the accident resulted in death to the employee.

(2) A defect or inaccuracy in the written notice is not a bar to compensation, unless the employer can show, to the satisfaction of the workers' compensation judge before which the matter is pending, that the employer was prejudiced by the failure to give the proper written notice, and then only to the extent of the prejudice.

(3) The notice must be given to the employer or to the employer's agent having charge of the business at which the injury was sustained by the employee.

SECTION 2. Tennessee Code Annotated, Section 50-6-208(i)(7), is amended by deleting ", but does not apply to injuries that occur after June 30, 2025".

SECTION 3. Tennessee Code Annotated, Section 50-6-218(a), is amended by deleting "thirty (30) years of age" and substituting "thirty-five (35) years of age".

SECTION 4. Tennessee Code Annotated, Section 50-6-218(b), is amended by deleting the subsection and substituting:

(b) Upon appointment, each judge of the workers' compensation appeals board shall serve a term of six (6) years and may be reappointed for up to three (3) additional terms by the governor upon expiration of the initial term. The governor shall designate one (1) of the judges as the presiding judge who, in addition to performing the duties of a judge on the workers' compensation appeals board, shall administer the day to day operations of the workers' compensation appeals board and supervise the activities of the workers' compensation appeals board judges. A judge appointed to the workers' compensation appeals board to fill a vacancy for less than a full term is eligible to serve up to an additional four (4) full terms.

SECTION 5. Tennessee Code Annotated, Section 50-6-226(a)(2)(A), is amended by adding "and the costs of burial, cremation, or other lawful means of disposition of human remains" after "Medical costs".

SECTION 6. Tennessee Code Annotated, Section 50-6-226(d)(2)(B), is amended by deleting "June 30, 2025" and substituting "June 30, 2030".

SECTION 7. Tennessee Code Annotated, Section 50-6-236(b)(3), is amended by deleting the subdivision.

SECTION 8. Tennessee Code Annotated, Section 50-6-238(a)(1), is amended by deleting "five (5) years experience" and substituting "seven (7) years' experience" and by deleting "thirty (30) years of age" and substituting "thirty-five (35) years of age".

SECTION 9. Tennessee Code Annotated, Section 50-6-238(a)(2)(B), is amended by deleting "three (3) full terms" and substituting "four (4) full terms" and by deleting ", and service of more than half of a term shall constitute service of one (1) full term" and substituting ", but a workers' compensation judge appointed to fill a vacancy for less than a full term is eligible to serve up to an additional four (4) full terms".

SECTION 10. Tennessee Code Annotated, Section 50-6-238(a)(2)(D), is amended by deleting "three (3) full terms" and substituting "four (4) full terms".

SECTION 11. Tennessee Code Annotated, Section 50-6-238(a), is amended by adding the following as a new subdivision:

(5) In addition to, and not in lieu of any other civil penalties as provided in this chapter or by rule, a workers' compensation judge may sanction a party for contempt pursuant to § 29-9-102 and impose a fine of up to fifty dollars (\$50.00) per occurrence. Upon imposition of the sanction, the sanctioned party may request a hearing to contest the sanction by filing a request for hearing with the court clerk no later than five (5) business days after the date the judge imposed the sanction. If the judge confirms the contempt finding, then the sanctioned party may appeal that decision by filing a notice of appeal with the workers' compensation appeals board. An appeal of a sanction under this subdivision (a)(5) must not result in a stay of proceedings in the underlying claim.

SECTION 12. Tennessee Code Annotated, Section 50-6-238(b)(3), is amended by deleting the subdivision and substituting:

(3) Upon appointment, the chief judge shall serve a term of six (6) years and may be reappointed by the administrator upon expiration of a term if the chief judge has served competently, responsibly, and impartially. A chief judge of the court of workers' compensation claims appointed to serve less than a full term to fill a vacancy is eligible to serve up to an additional four (4) full terms.

SECTION 13. Tennessee Code Annotated, Section 50-6-239(a), is amended by deleting "Within sixty (60) days" and substituting "If the presiding judge has not set a case for a hearing, then within sixty (60) days".

SECTION 14. Tennessee Code Annotated, Section 50-6-239(b), is amended by deleting the subsection and substituting:

(b) The presiding workers' compensation judge may, at the judge's discretion, grant permission for parties to present issues that have not been certified by a workers' compensation mediator.

SECTION 15. Tennessee Code Annotated, Section 50-6-245, is amended by deleting the section.

SECTION 16. This act takes effect July 1, 2025, the public welfare requiring it.